



FARMER DEVELOPMENT, INC.

SNOW REMOVAL SUBCONTRACTOR AGREEMENT

SEASONAL SUBCONTRACT

OWNER	Farmer Development, Inc.
SERVICE PROVIDER (Subcontractor)	
SERVICE PROVIDER ADDRESS	
STORE NAME / PROPERTY #	
STORE ADDRESS	
CONTRACT TERM	Season beginning and expiring (months)

Servicing more than one store under this Agreement? List each additional location and its fee(s) in Amendment A at the end of this Contract instead of signing a separate contract per store.

1. SCOPE OF SERVICES

- Snowplowing will be performed in all designated areas on a seasonal basis, continuing one or more times as needed, in accordance with generally accepted industry standards, to allow the store to safely open and operate between the hours and days entered below.

Business hours to be maintained: 9:00 AM to 6:00 PM on Monday through Saturday

- All emergency doors and designated walkways are to be hand shoveled at every visit.
- Snow markers must be placed at all fire hydrants, sidewalks, abutments, driveways, and other obstacles located in the snowplowing path prior to the first snowfall of the season.
- De-icer/salt shall be applied only as described in Section 2 (Fees) below or upon the explicit written request of an authorized Agent of Farmer Development, Inc. No payment will be made for salting or de-icing that was not included in this Contract or requested in writing.
- Snow shall be directed away from all buildings. Plowing shall be completed no closer than eighteen (18) inches to any building, and Service Provider shall not plow into or pile snow against any main entrance gate, office door, bathroom door, vestibule, fence, covered or non-covered parking area, or snow gate. If snow is piled against a building or blocks any of the above, Service Provider is responsible, at its own expense, to relocate it.
- Service Provider must survey and photograph existing conditions at the store prior to the commencement of services each season, and is responsible for injury to any person, or damage to any property, caused by Service Provider's drivers, employees, or equipment.
- Service Provider shall obtain keys and/or gate codes from Farmer Development, Inc. or its Agent in advance of performing services, and shall use only the assigned gate code(s) when entering and leaving the property.
- A Certificate of Insurance meeting the requirements of Section 3 below and a completed Form W-9 are required before the first payment will be made under this Contract.
- SERVICE PROVIDER WILL NOT PERFORM, AND WILL NOT BE PAID FOR, ANY SERVICES NOT LISTED IN THIS CONTRACT WITHOUT FARMER DEVELOPMENT, INC.'S PRIOR WRITTEN APPROVAL.**
- SERVICE PROVIDER MUST OBTAIN FARMER DEVELOPMENT, INC.'S PRIOR WRITTEN APPROVAL TO USE ANY HEAVY MACHINERY AT THE STORE UNLESS LISTED IN SECTION 2 BELOW. THE FEES IN THIS CONTRACT INCLUDE THE COST OF ANY EQUIPMENT DESIRED OR REQUIRED BY SERVICE PROVIDER TO COMPLETE THE SERVICES, REGARDLESS OF THE AMOUNT OF SNOW OR ICE OR TYPE OF EQUIPMENT REQUIRED. SERVICE PROVIDER'S REFUSAL TO PERFORM THE SERVICES FOR THIS REASON SHALL BE A MATERIAL BREACH OF THIS CONTRACT, AND FARMER DEVELOPMENT, INC. SHALL HAVE THE RIGHT TO EXERCISE ANY AND ALL REMEDIES AVAILABLE UNDER THIS CONTRACT, AT LAW, OR IN EQUITY, INCLUDING CONSEQUENTIAL DAMAGES.**
- Service Provider shall not add fuel, gas, or salt "surcharges" to any invoice. Charges of this kind will not be paid.

Service Provider's Initials (heavy machinery / no unapproved services):

2. FEES

A. Fixed Seasonal Pricing

This Contract automatically covers the winter season by providing salting, sanding, and snow removal ("the Services") for the fixed amounts below.

Contract includes pushes and salt applications at a 2" trigger.

Month	Base Monthly Amount
November	\$
December	\$
January	\$
February	\$
March	\$

Total Contract Amount: \$

B. Additional Salting (upon request), per-trip rate

Area	Rate
25% of Property or Customer Parking	\$
50% of Property (as directed)	\$
100% of Property	\$

C. Additional Equipment (must be pre-approved in writing)

Equipment	Rate
Front Loader, per hour	\$ 500.00
Skid Steer / Bob Cat, per hour	\$ 500.00
Dump Truck, per hour	\$ 500.00
Hauling, per hour	\$ 500.00

D. Notes

3. INSURANCE REQUIREMENTS

Prior to performing any work at the store, Service Provider shall deliver to Farmer Development, Inc. a Certificate of Insurance evidencing the following minimum coverage, with Farmer Development, Inc. (and, where directed, the property owner) named as Additional Insured:

- Commercial General Liability — \$1,000,000 per occurrence / \$2,000,000 aggregate
- Automobile Liability — \$300,000 combined single limit (or as required by the applicable customer contract)

- Workers' Compensation — statutory limits, and Employer's Liability of \$1,000,000
- Umbrella / Excess Liability, if requested by Farmer Development, Inc.

Coverage may not be canceled, materially changed, or allowed to lapse without at least thirty (30) days' prior written notice to Farmer Development, Inc. Service Provider shall not commence work until a compliant Certificate of Insurance has been received and approved.

4. ADDITIONAL TERMS

- In consideration of the fees described above, Service Provider will perform the Services at the store subject to the terms of this Contract. All work shall be completed in a clean, neat, and professional manner consistent with industry standards, and in accordance with all applicable laws, codes, and regulations.
- Service Provider is liable for any damage to the store — including, without limitation, structures, fences, buildings, doors, landscaping, curbs, and pavement — caused by Service Provider's drivers, employees, equipment, or subcontractors. Service Provider will, within thirty (30) days after Farmer Development, Inc.'s written request, repair and/or replace any such damage to Farmer Development, Inc.'s reasonable satisfaction, at Service Provider's sole cost.
- If Service Provider fails to timely repair or replace any damage it caused, or if Farmer Development, Inc. otherwise elects to perform or arrange the repair itself, Farmer Development, Inc. may repair or replace the damage using a vendor of its choosing and charge the full cost to Service Provider, plus a markup to cover Farmer Development, Inc.'s administrative and coordination costs, payable by Service Provider upon demand.
- All invoices must state the amount of snowfall and the date of each occurrence, and must be submitted within ten (10) days of job completion to the designated Agent to enhance payment processing. Invoices submitted more than sixty (60) days after completion of the Services will no longer be honored.
- Service Provider will indemnify, defend, and hold harmless Farmer Development, Inc., the property owner, and each of their respective directors, officers, teammates, lenders, successors, and assigns (collectively, the "Owner Parties") from any and all claims, losses, costs, injuries, damages, liabilities, liens, actions, and causes of action of any kind (including court costs and reasonable attorneys' fees) arising out of or in connection with any act, omission, or negligence of Service Provider or any of its teammates, agents, invitees, and/or subcontractors.
- Service Provider will be responsible for all costs and expenses (including reasonable attorneys' fees and court costs) incurred by Farmer Development, Inc. to enforce the terms of this Contract.
- Termination for Breach: Either party may terminate this Contract if the other party fails to cure a default or breach within ten (10) days after receipt of written notice thereof.
- Termination for Convenience: Farmer Development, Inc. may terminate this Contract at any time, with or without cause, upon ten (10) days' prior written notice to Service Provider.
- This Contract, including the Insurance Requirements described above, is the entire agreement of the parties, and there are no verbal representations, warranties, understandings, agreements, or promises pertaining to its subject matter that are not incorporated in writing herein. This Contract may not be altered, waived, or amended except by a written instrument signed by both parties.
- All payment, repair, replacement, and indemnity obligations in this Contract will survive its expiration or termination.
- Service Provider may not assign this Contract without Farmer Development, Inc.'s prior written consent, which may be withheld in Farmer Development, Inc.'s discretion. Farmer Development, Inc. may assign this Contract at any time to its successor or nominee upon written notice to Service Provider.
- This Contract shall be governed by, and construed in accordance with, the laws of the State of Michigan, without regard to its conflict-of-laws principles.
- The individuals signing this Contract on behalf of Service Provider and Farmer Development, Inc. represent and warrant that they are duly authorized to bind their respective parties, and that this Contract will constitute a valid and legally binding obligation enforceable against such parties in accordance with its terms.

SIGNATURES**SERVICE PROVIDER**

Signature (type full legal name)

Date

Print Name

Title

Company Name

Company Address (Street, City, State, Zip)

Phone

Email Address

Federal Tax ID # or Social Security #

FARMER DEVELOPMENT, INC.

Signature (type full legal name)

Date

Print Name

Title

Company Address

Phone

Email Address

Federal Tax ID #

AMENDMENT A — STORE LOCATIONS & FEES

This Amendment adds the store location(s) listed below to the Agreement between Farmer Development, Inc. and Service Provider identified on page 1. Where Service Provider services more than one store under this Agreement, each location is listed here with its agreed fee(s). All other terms and conditions of the Agreement — including the Scope of Services, Insurance Requirements, and Additional Terms — remain in full force and effect and apply to every location listed below. Additional copies of this Amendment page may be attached if more store locations are added later in the season.

Store # / Property Name	Store Address	Fee(s) for This Location

Acknowledged and agreed:

Service Provider — Signature

Date

Farmer Development, Inc. — Signature

Date